

Multiple Choice

1. **Answer:** C

Options: A) Because the concept of punishment has evolved over time.; B) Because punishment can be justified in multiple ways.; C) Because any definition of punishment should be value-neutral.; D) Because the practice of punishment is separate from its justification.; E) Because the justification of punishment varies across cultures.

Note: Separating the concept of punishment from its justification is crucial because a value-neutral definition allows for an objective analysis of punitive measures without being influenced by subjective moral or ethical beliefs, which can vary widely among individuals and cultures.

2. **Answer:** A

Options: A) A federal official from discriminating against a person based on race.; B) A federal official from discriminating against a person based on gender.; C) A federal official from discriminating against a person based on nationality.; D) A private company from discriminating against a person based on nationality.; E) A private individual from discriminating against a person based on race.

Note: The correct answer is based on the enabling clause of the Fourteenth Amendment, which grants states the authority to enforce federal laws against discrimination, particularly in cases where federal officials may violate individuals' rights based on race.

3. **Answer:** A

Options: A) Legal Pragmatism; B) Legal Formalism; C) Comparative; D) Analytical; E) Sociological

Note: Legal Pragmatism asserts that law should be interpreted and applied based on practical consequences and what is deemed "correct" in real-world contexts, emphasizing the importance of outcomes over rigid doctrinal adherence.

4. **Answer:** D

Options: A) Change in law that makes contract impossible; B) Bankruptcy of one party; C) Expiration of the contract term; D) Partial performance; E) Supervening illegality

Note: Partial performance does not terminate a contract by operation of law because it indicates that the parties have fulfilled some of their contractual obligations, rather than rendering the contract void or unenforceable.

5. **Answer:** A

Options: A) The power dynamic is determined by individual strength and not gender.; B) The idea of 'woman' needs to be redefined.; C) Women inherently possess more power than men.; D) Gender-based inequality is a myth.; E) Men and women share equal power in society.

Note: The correct answer is inconsistent with MacKinnon's argument because it suggests that power dynamics are based on individual strength rather than the systemic and gendered nature of power relations that she emphasizes.

True / False

6. **Answer:** False

Options: A) True; B) False

Note: The concept of 'natural law' was developed long before the American War of Independence, with its roots in ancient philosophy and later elaborated by Enlightenment thinkers, thus shaping political thought prior to the war rather than being initially articulated during it.

7. **Answer:** True

Options: A) True; B) False

Note: Savigny's concept of Volksgeist asserts that law is intrinsically linked to the unique cultural, historical, and social characteristics of a community, thus making it a reflection of that society's identity.

8. **Answer:** True

Options: A) True; B) False

Note: An 'armed attack' under Article 51 of the UN Charter encompasses all high-intensity instances of armed force as it refers to any aggressive action that poses a significant threat to the peace and security of a state, thereby justifying the right to self-defense.

9. **Answer:** False

Options: A) True; B) False

Note: The concept of status in Maine's aphorism is intricately linked to contemporary social contracts as it underscores the evolving nature of societal roles and obligations within the framework of constitutional law.

10. **Answer:** True

Options: A) True; B) False

Note: Llewellyn's distinction between grand and formal styles of legal reasoning fails to capture the complex and nuanced decision-making processes judges engage in, which often involve a blend of both styles rather than a strict categorization.

Long Form Response

11. **Answer:** The Doctrine of Worthier Title is a legal principle in property law that posits that a grantor cannot create a future interest in their heirs if the intention to do so is expressed in the grant. Instead, the doctrine holds that the heirs of the grantor will take by descent rather than through the grant, resulting in a reversion of property back to the grantor's estate. This affects the validity of a grantor's heirs because it

prevents them from having a vested interest in the property, thereby preserving the grantor's ability to retain control over the property during their lifetime. As a result, any attempt to convey a fee simple subject to a future interest for the grantor's heirs is rendered ineffective, reinforcing the principle that the grantor's intent should not undermine established property rights.

Note: correct because it accurately describes the Doctrine of Worthier Title, which states that a grantor's intention to create a future interest for their heirs is invalid, leading to the heirs taking by descent and resulting in a reversion of the property to the grantor's estate, thereby affecting the heirs' vested interest in the property.

12. **Answer:** Maine's aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' highlights a historical shift from rigid social hierarchies to more fluid contractual relationships among individuals. However, this notion is often misinterpreted as a deterministic prediction about the future trajectory of societal evolution, suggesting an inevitable progression toward an entirely contract-based society. Such a misinterpretation obscures the complexities of social change, as it implies a linear path that may not account for the persistent influence of status-based structures and the interplay of various social, economic, and political factors. Understanding this aphorism as a historical observation rather than a prescriptive forecast allows for a more nuanced analysis of contemporary societal dynamics and the potential for both regression and advancement within the realms of status and contract. This distinction is crucial for constitutional law, as it informs debates about individual rights, social equity, and the roles of governance in shaping societal relationships.

Note: The answer correctly identifies that Maine's aphorism describes a historical transition in societal organization from fixed statuses to flexible contracts, while also emphasizing that misinterpreting this concept as a deterministic prediction oversimplifies and overlooks the nuanced realities of social evolution.